

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

-----X **Index No.** _____
ANDREW HERRERA, Purchased 9-12-22

Plaintiff

Plaintiff designates New York
County as the place of trial

- against -

The basis of the venue is
where the tort arose**THE CITY OF NEW YORK,
POLICE OFFICER DEREK JUNG
(shield # 12660),****SUMMONS**

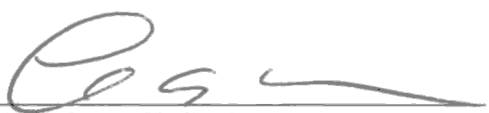
Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, NY
September 12, 2022


THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(212) 939-7251

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK****-----X
ANDREW HERRERA****Plaintiff,****Index No.
Verified Complaint****- against -****THE CITY OF NEW YORK,
POLICE OFFICER DEREK JUNG (shield # 12660),****Defendants.**

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Plaintiff ANDREW HERRERA, by his attorneys THE LAW OFFICES OF ELLIOT S. KAY, by ELLIOT S. KAY, principal, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff ANDREW HERRERA was a resident of New York County in the State of New York.
2. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of Defendant CITY.
4. At all times hereinafter mentioned, Defendant, POLICE OFFICER DEREK JUNG (shield # 12660) ("P.O. JUNG"), was and is a police officer employed by Defendants.

BACKGROUND

5. On November 4, 2017, at approximately 5:00 a.m., in the vicinity of Amsterdam Avenue and West 141st Street in New York County, without just cause or provocation, defendants, including P.O. JUNG, handcuffed Plaintiff and intentionally and falsely accused Plaintiff of having committed the crime of Operating a Motor Vehicle While Intoxicated and related charges.

6. On or about November 5, 2017, a Criminal Complaint was issued at the directive of Defendants, and a criminal action against Plaintiff commenced. Defendant P.O. JUNG, signed the Criminal Complaint knowing that it contained false and misleading information, including the allegations that Plaintiff was unsteady on his feet, smelled of alcohol and had watery eyes.

7. Plaintiff remained in custody until he was released on or about November 5, 2017.

8. Plaintiff had to defend against false charges until the criminal matter was terminated in favor of Plaintiff on June 21, 2021.

PROCEDURAL POSTURE

9. Plaintiff served a Notice of Claim in writing sworn to on Plaintiff's behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

10. More than thirty days have elapsed since service of said notice and defendant CITY has failed to pay or adjust this claim.

11. A 50-H hearing has been held.

12. This action has been commenced within one year and ninety days after the cause of

action of Plaintiff accrued.

13. Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION: MALICIOUS PROSECUTION

14. Paragraphs 1-13 are incorporated by reference as though fully set forth herein.

15. In arresting Plaintiff, the Defendants acted with malice. The Defendants lacked probable cause to arrest Plaintiff.

16. P.O. JUNG provide false information to the New York County District Attorney's Office regarding the circumstances of Plaintiff's arrest.

17. All charges pending against Plaintiff were dismissed and sealed upon the application of the District Attorney on June 21, 2021.

18. As a result of being maliciously prosecuted by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, NY
September 12, 2022

Yours, etc.,
THE LAW OFFICES OF ELLIOT S. KAY

A handwritten signature in black ink, appearing to read "Elliot S. Kay", is written over a horizontal line.

BY: ELLIOT S. KAY, ESQ.
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(212) 939-7251

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

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ANDREW HERRERA,

Plaintiff

-against-

**CITY OF NEW YORK,
POLICE OFFICER DEREK JUNG (shield # 12660),**

Defendants
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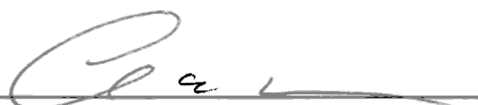
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Purchased: 9-12-22

I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bronx, NY
September 12, 2022


ELLIOT S. KAY